

Sadhana v. Dakshinanchal Electricity Distribution Corporation Ltd.

Allahabad High Court · Division Bench · 29 May 2019 · Writ-C No. 18947 of 2019 (All.) · WRIT - C No. 18947 of 2019 · **Writ disposed; Executive Engineer to consider and decide the new-connection application under Clauses 4.2 to 4.4 of the U.P. Electricity Supply Code, 2005, most expeditiously and if possible within one month.**

HEADNOTE

On a writ complaining that a new connection for a tailoring shop was not being processed despite deposit of the estimate and an indemnity bond, the Allahabad High Court accepted the licensee's statement that the Executive Engineer would consider the application in accordance with law and disposed of the petition with a direction to decide the grant of connection under Clauses 4.2 to 4.4 of the U.P. Electricity Supply Code, 2005, most expeditiously and if possible within one month. Entitlement was not adjudicated.

FACTUAL SUMMARY

Sadhana applied to Dakshinanchal Vidyut Vitran Nigam Ltd. for a new electricity connection for a tailoring shop. She asserted that she had completed all necessary formalities, deposited the estimated amount, and furnished an indemnity bond, yet the application was not being processed. Counsel for the distribution company stated that the Executive Engineer would consider the application in accordance with law within a reasonable time. The Division Bench took up the writ at Allahabad on 29 May 2019.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new connection — consider in accordance with Clauses 4.2 to 4.4

HOLDING

Where an applicant for a new connection claims to have completed formalities, deposited the estimate and furnished an indemnity bond, and the licensee undertakes that the Executive Engineer will consider the application in accordance with law, the Court may dispose of the writ by directing that officer to consider and decide the grant of connection under Clauses 4.2 to 4.4 of the U.P. Electricity Supply Code, 2005, most expeditiously and if possible within one month, without deciding entitlement on merits. ¶ 1

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond On a writ complaining that a new connection for a tailoring shop was not being processed despite deposit of the estimate and an indemnity bond ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMPLETED ALL FORMALITIES AND WAS ENTITLED TO A NEW CONNECTION ON THE INDEMNITY BOND

The Court did not examine occupancy, owner consent, or completeness of the application; it only directed consideration under Clauses 4.2 to 4.4. ¶ 1